



## DECISION

Complaint No. : POS/2096/2024/NFZ-19

Name and address of the complainant : Mr. Muhammad Yousif  
S/o. Muhammad Sadique Chandio  
R/o House No. A-700 Muhalla AL-Abbas Housing  
Society, Qasimabad, Hyderabad,

Name of the Agency Complained against : Union Council Halani

Name & Designation of Investigating Officer : Mr. Khalid Shaikh  
Regional Director, N' Feroze.

Vetted by : Fasihuddin Khan,  
Advisor 'Z'

Subject : COMPLAINT AGAINST SECRETARY U.C HALANI FOR ALLEGED ISSUANCE OF TWO DEATH CERTIFICATES DATED 19.11.2020 AND 22.03.2023 IN RESPECT OF DECEASED MST. RAJ BAI SHOWING TWO DIFFERENT DATES OF DEATH.

### COMPLAINT

Mr. Muhammad Yousif, filed a complaint on 22-04-2024 stating therein that the Secretary Union Council Halani issued fake death certificates showing two different dates of death in respect of deceased Mst. Raj, Bai; firstly dated 01.06.1986 issued to Mr. Maqsood Ahmed Sahito on 19.11.2020 and the other dated 10.08.1986 issued to Mr. Ghulam Muhammad on 22.03.2023. He is alleged to have done it after receiving illegal gratification. The complainant, therefore, requested for enquiry and action against the Secretary, Union Council Halani.

### PROCEEDINGS

The Complaint was admitted Under Section 10 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) by condoning the delay subject to submission of copy of CNIC and affidavit on Form "A". For this purpose, letter was issued to the complainant for submission of required documents on 04.06.2024. On 20.06.2024, the complainant submitted affidavit on Form "A" along with Special Power of Attorney in favour of Mehtab Mir Chandio and copy of his CNIC for proceeding further in the matter. The complaint was referred to Town Committee. Halani for comments vide letter dated 26.06.2024. On 10.07.2024, representative of the Agency submitted comments that 1<sup>st</sup> death certificate of Mst. Raj Bai D/o Bakhsh Ali showing her mother's name Mst. Hawa and husband's name Haji Ghulam Qadir Sahito was issued on the application of Maqsood Ahmed Sahito. It was further stated that they did not submit any CNIC of the deceased and mentioned in the Affidavit that she had expired on 01.06.1986. Her date of birth was mentioned as 1<sup>st</sup> January, 1903. Hence on 19.11.2020 death certificate was issued accordingly to the applicant who claimed himself to be the grandson of the deceased. The Agency

further informed that on the other hand, Ghulam Muhammad Sahito also applied for issuance of death certificate of his grandmother namely Mst. Raj. Bai D/o Allah Bux showing mother's name as Panah Khatoon. He submitted Affidavit in which her date of death was mentioned as 10.08.1986 and her date of birth was mentioned as 01.01.1901; the said details did not match with the death certificate issued on 19.11.2020 hence computerized system did not trace the same showing both the ladies as different persons. He further stated that due to said reason as per record both had separate dates of birth, names of father, names of mother and dates of death hence there was no illegality or fault on the part of Town Committee Halani.

It was further pointed out that the legal heirs of deceased Mst. Raj Bai had filed Civil Suit No. 01 of 2023 (Ghulam Murtaza & others v/s Shamsuddin & others). Representative of the Agency submitted photostat copies / documents pertaining to FC Suit No. 01 of 2023, FC No. 38 of 2022 etc in the subject matter with special reference to death of Mst. Raj Bai. It was further stated that the Civil Suits were pending before the competent courts of law. The comments were shared with the complainant for rejoinder, if any vide letter dated 12.09.2024. On 21.10.2024, Attorney of the complainant submitted rejoinder wherein he stated that the Agency's report was not satisfactory because he did not mention anything regarding misuse of their powers as to how the Secretary, Union Council Halani issued both certificates with different contents. He clarified that the FC Suits pending before the Court between the parties were on the issue of landed property and not the issuance of death certificate. The matter was fixed for hearing the parties on 14.11.2024, during which the Agency submitted its comments as per earlier version. On 21.11.2024, representative of the Agency filed copy of another death certificate dated 22.03.2022 which was handed over to the Advocate of the complainant. On 20.12.2024, representative of the Agency submitted copy of issues framed by the court of Senior Civil Judge, Kandiaro in F.C. Suit No. 1 of 2023. Issue No. 2 of the said suit reads as under:

“Whether Mst. Raj Bai Wd/o Ghulam Qadir was expired in the year 1986 and predecessor-in interest of defendants No. 01 namely Qamaruddin Sahito committed fraud and produced any other lady showing her as Mst. Raj Bai?”

Thereafter, Advocate of the complainant failed to appear before the Investigation Officer and did not submit any rejoinder from the complainant's side. From the above proceeding, it is evident that the subject matter of the complaint is directly or indirectly connected with Civil Suits pending before the Court. Further proceedings in the matter are, therefore, barred for this Institution under section 9 (1) of the Act, 1991.

(3)

DECISION

In view of the above the complaint is disposed of as subjudice.

**Given under my hand and seal of Office.**



**Sd/-**  
(MUHAMMAD SOHAIL RAJPUT)  
Sitara-e- imtiaz: PAS  
Ombudsman, Sindh

Karachi, dated

22<sup>nd</sup> January, 2026

